

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

BAL CONTAINER LINE CO., LIMITED, *Complainant*

v.

SSA MARINE TERMINAL AND SSA TERMINALS (PIER A),
LLC, *Respondents*.

DOCKET NO. 23-11

Served: December 15, 2023

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

ORDER GRANTING MOTION FOR LEAVE TO AMEND COMPLAINT

On December 7, 2023, Complainant BAL Container Line Co., Limited filed a motion for leave to amend its complaint. The motion cited “additional critical claims and facts at issue in this matter” and lack of prejudice to Respondent since the motion was filed prior to the December 13, 2023 deadline for the answer. On December 12, 2023, the parties filed a joint status report in which they informed the presiding officer that they had agreed Respondent should not file an answer to the original complaint while the motion for leave to file an amended complaint was pending. No opposition was filed.

The parties are reminded that 46 C.F.R. § 502.71(a) requires parties to confer on non-dispositive motions and to state in the body of their motion whether there is opposition to the relief requested. Had that happened here, the motion could have been granted prior to the deadline for filing an answer. The parties are also reminded that agreements between counsel do not extend deadlines set by the presiding officer. Any non-dispositive motions that do not comply with Rule 71 may be denied on that basis. And failure to file an answer (or any other filing) as ordered by the presiding officer or required by the Commission’s rules may result in a decision on default in accordance with Rule 65.

Rule 66 permits amendment of a pleading at the discretion of the presiding officer. Given the early stage of the proceedings, the lack of prejudice to the Respondent, and the interest in ensuring all claims are fully and accurately presented in the complaint, I find permitting the amendment appropriate. The motion for leave to amend is therefore **GRANTED**. It is requested that the Office of the Secretary enter the Verified Amended Complaint lodged with the motion on the docket, and that the Verified Amended Complaint be deemed filed as of the date of this order. Respondent will file its answer no later than January 9, 2024.

Alex Michael
Chintella

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Alex M. Chintella
Administrative Law Judge